

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: August 17, 2026

Time: 2:00 PM

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1	Stassi v. Indelicato	Cont. to 8/24
2	Stars Bay Area, Inc. v. Panthers Capital, LLC	Before the Court is a motion to strike answer filed by plaintiffs Stars Bay Area, Inc., Mark Ramos and Rosa Gonzalez (Plaintiffs) against defendant Panthers Capital, LLC (Defendant). For the reasons set forth below, the motion is DENIED in its entirety. "The court may, upon a motion made pursuant to Code of Civil Procedure section 435, or at any time in its discretion, and upon terms it deems proper . . . [s]trike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code of Civ. Proc. § 436, subd. (b).) The statute authorizes "the striking of a pleading due to improprieties in its form or in the procedures pursuant to which it was filed." (<i>Ferraro v. Camarlinghi</i> (2008) 161 Cal.App.4th 509, 528.) To the extent Plaintiffs seek to strike the unverified answer filed on January 7, 2026, Plaintiffs' motion is untimely because it was brought more than 10 days after service of the answer. (See Code of Civ. Proc. § 435, subd. (b)(1) and § 430.40, subd. (b); see also Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The

		Rutter Group 2026) ¶ 7:166.1, citing Code of Civ. Proc. § 435, subd. (b) and Cal. Rules of Court, rule 3.1322(b).) As to the verified answer filed on February 20, 2026, it is a timely amendment to the original answer. (<i>Jenssen v. R.K.O. Studios</i> (1937) 20 Cal.App.2d 705, 707-708 [the failure to verify an answer in response to a verified complaint “amounted to no more than a defect in pleading” which is not jurisdictional]; <i>Natkin v. California Unemployment Ins. Appeals Bd.</i> (2013) 219 Cal.App.4th 997, 1011-1012 [failing to verify an answer is a defect curable by amendment].) “A party may amend its pleading once without leave of court at any time before the answer, demurrer, or motion to strike is filed . . .” (Code of Civ. Proc. § 472, subd. (a).) Here, Defendant filed the verified answer before Plaintiffs filed the motion to strike and thus filed the amended pleading as a matter of right. Even if the verified answer is not construed as an amendment (which it is), the Court exercises its discretion to deny the motion to strike. There is no prejudice to Plaintiff as the case is still in the pleading stages and no trial date has been set, Defendant filed a verified answer before any default or judgment has been entered, Defendant filed a cross-complaint that raises the same issues in the verified answer, and striking the answer will only delay the case. The Court also denies Plaintiff’s alternative request for judgment on the pleadings. The cases upon which Plaintiffs rely are over 100 years old, and judgment on the pleadings granted where the answer was unverified. (See e.g., <i>Consolidated Music Co. v. Morrison</i> (1916) 30 Cal.App.303; <i>Stockton Lumber Co. v. Blodget</i> (1906) 3 Cal.App. 94; <i>Hearst v. Hart</i> (1925) 128 Cal.327; <i>McCullough v. Clark</i> (1871) 41 Cal. 298.) Here, Plaintiffs did not timely move to strike the unverified answer and the subsequent verified answer is a timely amendment. The motion is therefore DENIED in its entirety. Counsel for Defendant shall give notice of this ruling.
3	Vivian v. MHCC, Inc.	Before the Court is a motion for sanctions pursuant to Code of Civil Procedure section 128.5 filed by plaintiffs Scott Vivian and Pacific Construction Management International, LLC (Plaintiffs) against defendant Ohio Security Insurance Company (Defendant). For the reasons set forth below, the motion is DENIED. Code of Civil Procedure section 128.5, subd. (a) provides that: “[a] trial court may order a party, the party’s attorney, or both, to pay the reasonable expenses, including attorney’s fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay.” Frivolous means either 1) “totally and completely without merit” or 2) “for the sole purpose of harassing an opposing party.” (Code of Civ. Proc. § 128.5, subd. (b)(2).) Section 128.5 requires the responding party acted in “subjective bad faith,” that is, personally intended to use improper tactics. (<i>In re Marriage of Sahafzadeh-Taeb & Taeb</i> (2019) 39 Cal.App.5th 124, 134.) A motion is

		"frivolous" or in "bad faith" where "any reasonable attorney would agree [it] is totally devoid of any merit," i.e., lacking any basis in statutory or case law, or without any necessary evidence to support it. (<i>Karwasky v. Zachay</i> (1983) 146 Cal.App.3d 679, 681.) Here, Plaintiffs failed to show the motion at issue was frivolous and/or failed to produce any evidence of bad faith. Though Defendant's position that it did not need to comply with the 21-day safe harbor rule was rejected and Defendant's reliance on <i>Changsha Metro Group Co., Ltd. v. Xufeng</i> (2020) 57 Cal.App.5th 1 was misplaced, it cannot be said the motion was totally devoid of any merit. The motion is therefore DENIED. Defendant's request for attorney fees is also DENIED. "If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion." (Code of Civ. Proc. § 128.5, subd. (f)(1)(C).) Here, Defendant's sanctions motion was not "frivolous" but it lacked merit. Defendant had the opportunity to withdraw the sanctions motion after Plaintiff served the 21-day safe harbor provision but instead opted to pursue the meritless motion. Counsel for Defendant shall provide notice of this ruling.
4	National Collegiate Student Loan Trust 2007-2 v. Serrao	The motion to set aside dismissal and enter judgment filed by plaintiff National Collegiate Student Loan Trust 2007-2 (Plaintiff) against defendant Jessica Serrao (Defendant) is CONTINUED to October 5, 2026, at 2:00 p.m. in Department N17. The notice of motion lists an incorrect address for the hearing. Although the notice of motion correctly states the date and time of the hearing and that the matter will be heard in Department N17, the notice incorrectly lists the court address as 700 Civic Center Drive West, Santa Ana, CA, and the caption incorrectly states the justice center is Complex Justice Center. Due to these discrepancies, the Court will continue the hearing as stated above to ensure Defendant receives proper notice of the hearing on this motion. Plaintiff is ordered to file an amended notice of motion and proof of service thereof showing Defendant was provided with timely notice of the correct date, time and location of the new hearing. Plaintiff is ordered to give notice of this ruling.
5	Kennedy vs. Maksoud	Before the Court at present is the Special Motion to Strike Cross-Complaint, etc., filed on 6/17/25 by Dr. Charbel Maksoud ("Maksoud"), as to the Cross-Complaint filed on 5/18/26 by Alexandre Sadek ("Sadek"). Maksoud has failed to show that the Motion was properly served. The proof of service presented with the Motion (ROA 90) fails to show that the Motion was duly served on all parties who have appeared in the action, or that service was properly effectuated on Sadek by a means other than electronic service, as a self-represented party may not be served electronically unless such service has been expressly consented to. (See C.C.P. §§ 1010.6(c),

		1011(b), and 1014, and C.R.C. 2.253(b)(2), (3).) The hearing on the Motion is therefore CONTINUED to October 26, 2026, at 2:00 p.m. The case management conference and order to show cause re monetary/terminating sanctions are also CONTINUED to October 26, 2026, at 2:00 p.m. Counsel for Maksoud is to promptly prepare an Amended Notice for the continued hearing date for this Motion and the case management conference, and properly serve the Motion itself, along with that Amended Notice, on all parties who have appeared in the action. That Amended Notice, and proofs of service reflecting proper service on all parties, are to be filed and served within 10 days. Counsel for Maksoud is to give notice of this ruling.
6	Reynolds v. County of Orange	Before the Court is a motion to approve settlement agreement and distribution of settlement payment filed by defendant City of Buena Park (City). For the reasons set forth below, the motion is DENIED. The statutes the City relies on do not authorize the relief requested in the City's motion. By its own language, Code of Civil Procedure section 708.440 applies to an application by the judgment debtor – in this case, plaintiff Marion Reynolds (Plaintiff). The City is not the judgment debtor in this action and thus the Court cannot approve the settlement pursuant to the City's motion. Code of Civil Procedure section 708.470 also does not authorize the relief requested by the City, as this matter involves a settlement, not a judgment. (See Code Civ. Proc., § 708.470(a); <i>Casa Eva I Homeowners Assn. v. Ani Constr. & Tile, Inc.</i> (2005) 134 Cal.App.4th 771, 781 [finding court lacked jurisdiction to act under § 708.470(a) where there was no "judgment" (case settled)].) "[T]hese judgment lien statutes are subject to strict construction." [Citation.] "[W]here a statute requires a court to exercise its jurisdiction in a particular manner, follow a particular procedure, or be subject to certain limitations, an act beyond those limits is in excess of its jurisdiction and void." [Citation.] (<i>Casa Eva I Homeowners Assn. v. Ani Constr. & Tile, Inc.</i>, supra, 134 Cal.App.4th at 780-781.) Based on the above, the motion is DENIED. Plaintiff's request for approval of the settlement is not properly before the Court as it was only raised in Plaintiff's (very late) opposition. Plaintiff will need to file his own motion pursuant to section 708.440 to obtain approval of the subject settlement. Any motion seeking approval of the settlement must address the County of Orange's lien in this matter. Counsel for Plaintiff shall give notice.
7	Arck Services, LLC v. Bekam	The motion to compel arbitration filed by defendants Sepehr Bekam; Low Income Property, LLC; SPS Platinum Properties, LLC; Modest

Rental Property, LLC; and Omni Consumer Products & Apartments, LLC (collectively, Defendants) is **GRANTED**.

A party seeking to compel arbitration pursuant to Code of Civil Procedure section 1281.2 "has the burden of proving the existence of a valid arbitration clause and the dispute is covered by the agreement." *Larian v. Larian* (2004) 123 Cal.App.4th 751, 760. "If the moving party meets its burden, the opponent of arbitration has to prove by a preponderance of the evidence any defense to the petition or motion to compel the dispute to be arbitrated." (*Ibid.*)

Here, there is no dispute the parties entered into the promissory notes at issue in this action which contain the subject arbitration provisions. (See ROA 118, Afshari Decl., ¶¶ 4, 11, 13-14; Compl. ¶ 13 and Exs. 1-7 thereto.)

In the Opposition, Plaintiff argues the motion should be denied because (1) the loan transactions were illegal, (2) the parties did not agree to arbitrate the fraud, common count, or breach of guaranty claims, or as to the promissory note contained in Exhibit 4 to the Complaint, and (3) the arbitration provision is unconscionable.

Illegality of Contracts

The Court does not reach the illegality argument because the arbitration clauses specify that "the arbitration shall be governed by the United States Arbitration Act, 9 U.S.C. § 1 et seq." (Maralan Decl., Ex. A [Promissory Note ¶ 10(b)]; Compl., Exs. 1-3, 5-7, ¶ 10(b); Bekam Suppl. Decl., Ex. A, ¶ 10(b).) Where the Federal Arbitration Act governs, the legality of the contract in which the arbitration clause appears must be determined by the arbitrator. (*Nitro-Lift Technologies, L.L.C. v. Howard* (2012) 568 U.S. 17, 20-21 ("[I]t is a mainstay of the Act's substantive law that attacks on the validity of the contract, as distinct from attacks on the validity of the arbitration clause itself, are to be resolved 'by the arbitrator in the first instance, not by a federal or state court'"); see also *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 415 [under the FAA claims of fraud in the inducement of the contract generally, that is, fraud claims not going to the making of the agreement to arbitrate, are to be decided by the arbitrator rather than the court].)

The Scope of Arbitration Clause in the Promissory Notes includes the Fraud and Common Count Causes of Action and the Guaranty Agreements

The provision at issue here reads:

"THE PARTIES AGREE TO SUBMIT ANY DISPUTE, CLAIM OR CONTROVERSY ARISING OUT OF THIS NOTE TO PRIVATE MEDIATION. IN THE EVENT THAT THE PARTIES ARE UNABLE TO REACH AN AMICABLE RESOLUTION TO THE DISPUTE AT THE MEDIATION, THE DISPUTE, CLAIM OR CONTROVERSY ARISING UNDER

THIS NOTE SHALL BE RESOLVED BY BINDING
ARBITRATION."

Plaintiff asserts that the phrase "arising under this note" relating to arbitration is narrower than the phrase "arising out of this note" relating to mediation. The Court is unconvinced the drafter of the note intended to limit arbitration to only some of the matters subject to mediation. Indeed, the phrases "arising out of" and "arising under" are both considered to be relatively narrow arbitration clauses, both viewed as applicable to "disputes relating to the interpretation and performance of the agreement." *Rice v. Downs* (2016) 248 Cal.App.4th 175, 187 ("arising out of"); *Mediterranean Enters., Inc. v. Ssangyong Corp.* (9th Cir. 1983) 708 F.2d 1458, 1464 ("arising under").

But the conclusion that the scope of the arbitration provision here is narrow rather than broad is the beginning, not the end of the analysis. "The issue is not resolved simply by determining whether the arbitration clause is narrow or broad, . . . or . . . whether the claims in issue sound in tort, not contract." *Rice*, at 187. The *Rice* court determined that narrow arbitration provisions like that here involved "encompasses contractual claims and perhaps even tort claims arising from the agreement," but held that "a tort claim based upon violation of an independent duty or right originating outside of the agreement does not *arise* from the agreement and falls outside the scope of the arbitration provision." *Id.* at 190-191.

In *Mediterranean*, one of three federal cases relied upon by *Rice*, the Ninth Circuit determined the phrase "arising under the Agreement" to be "relatively narrow" but nonetheless upheld the district court's inclusion of a tort claim of breach of fiduciary duty in the arbitration order because the fiduciary duty arose from the contract itself. *Id.* at 1465.

More to the point, *Rice* acknowledged that claims of fraud in the inducement of the contract would fall within even a narrow arbitration clause. *Id.* at 193. This was recognized by our Supreme Court in *Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak St. (Ericksen)* (1983) 35 Cal.3d 312. In *Ericksen*, the defendant filed a petition to compel arbitration based on a Lease agreement which included a provision to arbitrate "any dispute between the parties hereto with respect to the provisions of this Lease . . ." *Id.* at 315 (Emphasis added.). Supreme Court determined that despite the limited scope of the clause "the contract language was broad enough to include a claim of fraud in the inducement of the contract itself" *Id.* at 318.

In reaching this decision, the Supreme Court in *Ericksen* observed:

"The scope of arbitration is, of course, a matter of agreement between the parties, and if they choose to limit that scope so as to exclude questions of fraud in the inducement of the contract that choice must be respected. In this state as under federal law [citation], doubts concerning the scope of arbitrable issues are to

be resolved in favor of arbitration. [Citations.] Therefore, in the absence of indication of contrary intent, and where the arbitration clause is reasonably susceptible of such an interpretation, claims of fraud in the inducement of the contract ... will be deemed subject to arbitration."

Id. at 323.

In the present case, the fraud cause of action alleges fraud in the inducement as to the notes containing the arbitration clause; nothing in the arbitration clause suggests that the parties intended to exclude from its scope claims for fraud in the inducement.

As to the common count cause of action, the complaint alleges:

"As set forth above in the First and Second Causes of Action, Defendants breached the promissory notes and the guaranty agreements within the past four years. There is due, owing and unpaid, from Defendants to Plaintiff, an amount of approximately \$205,488.52 for payments due through the present on the notes and guaranty agreements and \$132,000.00 for the loan for the purchase of 3715 Flora Avenue, Kansas City, MO, all subject to proof at time of trial."

Given that the common count is expressly premised on breach of the notes, there is little question the cause of action concerns "disputes relating to the interpretation and performance of the agreement."

Similarly, although the guaranty agreements do not themselves contain an arbitration clause, liability under each guaranty arises based on a breach of the corresponding note; thus, the parties' dispute as to the guaranty agreements "arises under" the promissory notes.

Finally, Plaintiff's argument that the promissory note at Exhibit 4 to the Complaint does not contain an arbitration provision relies on its own incomplete exhibit. The complete promissory note with the arbitration provision at paragraph 10(b) is included with Defendants' reply declaration. (See Bekam Suppl. Decl., Ex. A.) Plaintiff's argument in this regard thus fails.

Unconscionability

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.)

Plaintiff failed to show procedural unconscionability based on its claimed inequality of bargaining power. As Defendants argue in the reply, the dispute here is a commercial one between business entities, where Plaintiff, a private lender, made repeated loans to

real estate investment companies, and it sues to collect on those loans. “[P]rovision for arbitration in a commercial context is quite common, and reasonably to be anticipated.” (*Keating v. Superior Court* (1982) 31 Cal.3d 584, 595, revd. in part on other grounds *Southland Corp. v. Keating* (1984) 465 U.S. 1.) Moreover, Plaintiff admits the parties transacted with each other for at least five years before the loans at issue. (Afshari Decl., ¶ 10.) In this context, Plaintiff failed to demonstrate oppression or surprise sufficient to support a finding of procedural unconscionability.

Plaintiff may have shown some degree of procedural unconscionability based on the failure to attach the JAMS arbitration rules to the contracts. (See *Carmona v. Lincoln Millennium Car Wash, Inc.* (2014) 226 Cal.App.4th 74, 84; *Harper v. Ultimo* (2003) 113 Cal.App.4th 1402, 1406–1407). Plaintiff, however, failed to show the arbitration provisions are substantively unconscionable.

Plaintiff contends the JAMS arbitration rules place unreasonable limits on discovery. As Defendants argue, Plaintiff relies on employment cases applying the minimum requirements for arbitrations of claims based on the FEHA or a fundamental public policy imposed by *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83. The instant case does not involve such claims and thus the *Armendariz* requirements would not be applicable. (See *Giuliano v. Inland Empire Personnel, Inc.* (2007) 149 Cal.App.4th 1276, 1290 [*Armendariz* requirements inapplicable to contract claim for bonus and severance payments].)

Even if *Armendariz* applied, the discovery provision here is “sufficient to adequately arbitrate [Plaintiff’s] claim, including access to essential documents and witnesses, as determined by the arbitrator” and is thus not substantively unconscionable. (See *Armendariz v. Foundation Health Psychcare Services, Inc.*, *supra*, 24 Cal.4th at 106; see also, JAMS Rule 16.2(b), (d) and (g) [ROA 122, Ex. 3].) Moreover, “[l]imited discovery rights are the hallmark of arbitration.” (*Coast Plaza Doctors Hospital v. Blue Cross of California*, *supra*, 83 Cal.App.4th at 689.)

Plaintiff also failed to demonstrate that the costs of arbitration render the agreements substantively unconscionable. Plaintiff does not claim, and the evidence offered by Plaintiff does not establish, that the costs of arbitration would be prohibitive to Plaintiff. (See *Sanchez v. Superior Court* (2025) 108 Cal.App.5th 615, 628 [A mandatory arbitration agreement is substantively unconscionable if it requires the payment of unaffordable fees to initiate the process].) The only evidence Plaintiff offers on this point is the conclusory statement from its managing member, Ms. Afshari, that “Arck and I would be very hard pressed, if we would even be able, to pay for the costs of JAMS and the fees of an arbitrator in addition to our living expenses and costs of attorneys to pursue the claims to try to recover the monies owed.” (Afshari Decl., ¶ 6.) This is insufficient to demonstrate the arbitral fees are unaffordable to Plaintiff. Plaintiff offered no evidence of its own finances. Moreover, the claims at issue in this case involve loans in excess of \$560,000.

		Plaintiff has not shown this factor supports a finding of substantive unconscionability. For the same reasons, Plaintiff's request that any order granting arbitration be conditioned upon Defendants either paying Plaintiff's share of the arbitration costs and fees up front or waiving their right to arbitration is DENIED. Accordingly, the motion to compel arbitration is GRANTED. Plaintiff's request for judicial notice is DENIED as to Items 1-2 and 4-9. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) Plaintiff's request for judicial notice is GRANTED as to Item 3. (Evid. Code, § 452(h).) The entire action is STAYED pending completion of arbitration. The case management conference set for today is OFF-CALENDAR. A Status Conference re: Status of Arbitration is scheduled for December 4, 2026, at 9:30 a.m. Counsel for Defendants shall give notice.
8	Flicker v. Newport Harbor Post No. 291, of the American Legion	Defendant Newport Harbor Post No. 291, of the American Legion's unopposed Motion to Compel Arbitration and Stay Action is GRANTED. A party seeking to compel arbitration pursuant to Code of Civil Procedure section 1281.2 "has the burden of proving the existence of a valid arbitration clause and the dispute is covered by the agreement." (<i>Larian v. Larian</i> (2004) 123 Cal.App.4th 751, 760.) "If the moving party meets its burden, the opponent of arbitration has to prove by a preponderance of the evidence any defense to the petition or motion to compel the dispute to be arbitrated." (<i>Ibid.</i>) Here, the moving party has submitted two arbitration agreements signed by Plaintiff. The two subject agreements are separate from any other agreements, and are each clearly labelled "DISPUTE RESOLUTION AGREEMENT." Plaintiff has not opposed the motion. The action is ordered to arbitration and is stayed pending its outcome. The case management conference set for today is OFF-CALENDAR. Status conference re selection of arbitrator is set for December 4, 2026, at 9:30 a.m. Moving party to give notice.
9	Stein v. ActBlue Charities, Inc.	Before the Court are two motions. The first is a motion to quash service of summons filed by Defendants ActBlue Charities, Inc., ActBlue Civics, Inc., ActBlue Technical Services, Inc., and ActBlue

LLC (collectively, "ActBlue"). As set forth herein, the motion to quash is **GRANTED**. The second motion is a demurrer by ActBlue to the plaintiffs' complaint. Because the motion to quash has been granted, the demurrer is **MOOT**.

MOTION TO QUASH

A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over him or her. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).) Code of Civil Procedure section 410.10, states, "A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." In this motion, ActBlue seeks to quash service of summons and complaint based on lack of personal jurisdiction of the court.

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) Thus, the burden is on the plaintiff to demonstrate by a preponderance of the evidence that all jurisdictional criteria are met. (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232.)

Here, Plaintiffs Howard Stein and Linda Nicholes (Plaintiffs) do not dispute ActBlue's argument there is no basis for general jurisdiction. Instead, plaintiffs focus on specific jurisdiction. However, Plaintiffs' evidence falls well short of meeting their burden to establish specific jurisdiction.

Significantly, there is no evidence ActBlue targeted the plaintiff or targeted California. Instead, Nicholes concedes she was the one who accessed ActBlue's website to donate to her selected charities, to provide payment information, authorize the transactions and communicate with ActBlue. (Nicholes Decl. ¶4) It was Nicholes who initiated the contact with ActBlue as opposed to ActBlue reaching out to Nicholes.

Further, Plaintiffs do not dispute the statements in Benjamin Sharton's declaration where he stated that processing of all transactions was done in Massachusetts. Also, Plaintiffs do not dispute Sharton's declaration where he states that the parties agreed to "submit to personal and exclusive jurisdiction" in Massachusetts. As the Court stated in *Aquila, Inc. v. Superior Ct.* (2007) 148 Cal.App.4th 556, 572: "The contract includes clauses for New York choice of law and forum selection, which tends to weigh against a conclusion from this document that Aquila itself or its predecessor sought to do significant business in California. Under Vons, supra, 14 Cal.4th at page 449, it is not enough for a nonresident defendant to become subject to the specific jurisdiction of this state simply by entering into a contract with a California resident. The court in Goehring v. Superior Court (1998) 62

		Cal.App.4th 894, 907, states that a party's entry into a contract with an out-of-state party does not automatically demonstrate purposeful availment in the other party's home forum, particularly where the agreements were governed by out-of-state law." Moreover, Nicholes' assertion that ActBlue "solicited donations" from her is vague and not supported by any documentary evidence. First, plaintiffs do not describe which of the four defendants solicited donations. Second, plaintiffs provide no detail as to the actual solicitation. For example, Nicholes does not give one factual example as to when or in what form ActBlue solicited a donation from her for a specific charity. "Declarations are insufficient to support the assertions for which they are offered if they consist primarily of vague assertions of ultimate facts rather than specific evidentiary facts permitting a court to form an independent conclusion on the issue." <i>Jewish Def. Org., Inc. v. Superior Ct.</i> (1999) 72 Cal. App. 4th 1045, 1055. Based on the evidence submitted, Plaintiffs have not met their burden to establish that the four defendants purposely availed themselves of forum benefits. Accordingly, the motion is GRANTED and the complaint is DISMISSED, without prejudice, as to the four ActBlue defendants. <u>DEMURRER</u>: In light of the ruling on the motion to quash, the demurrer by ActBlue is MOOT. The case management conference set for today is OFF-CALENDAR. ActBlue shall give notice.
10	Mahgerefteh v. Garza	Before the Court are the following five motions filed by plaintiff/cross-defendant Nasser Mahgerefteh (Plaintiff) against defendant/cross-complainant Steven Anthony Garza (Defendant): 1) motion to compel further responses to special interrogatories, set one; 2) motion to compel further responses to form interrogatories, set one; 3) motion to compel further responses to requests for production of documents, set one (RFPs); 4) motion to compel further responses to requests for admission, set one (RFAs); and 5) motion to proffer evidence. For the reasons set forth below, the motions to compel further responses to special interrogatories, RFPs and RFAs are DENIED; the motion to compel further responses to form interrogatories is GRANTED as to nos. 4.1, 6.4 to 6.7, 7.1(d), 9.1(c), (d) and 16.2 (a)(b)(c) and is otherwise DENIED; and the motion to proffer evidence is DENIED. Where responses to interrogatories, document demands and/or requests for admission have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion to compel further responses. (Code of Civ. Proc. § 2030.300, subd. (a), § 2031.310, subd. (a), § 2033.290, subd. (a).) Unless the motion is served within 45 days after service of verified responses (extended two court days if served electronically) the requesting party waives any

right to compel further responses. (Code of Civ. Proc. § 2030.300, subd. (c), § 2031.310, subd. (c), § 2033.290, subd. (c), § 1010.6, subd. (a)(3).) The motion must be accompanied by a separate statement, and a meet and confer declaration. (Cal. Rules of Court, rule 3.1345(a),(c); Code of Civ. Proc. § 2030.300, subd. (b)(2), § 2031.310, subd. (b)(2), § 2033.290, subd. (b)(2).)

Motion to Compel re: Special Interrogatories: The motion was timely filed and served. However, Plaintiff's meet and confer efforts were insufficient and the separate statement fails to comply with California Rules of Court, rule 3.1345. Moreover, the responses are generally code-compliant and responsive to the interrogatories asked, some of which are uncertain and unintelligible. With regard to interrogatories relating to medical treatment and medical bills for Defendant's injuries, these interrogatories are duplicative of the form interrogatories and/or the information can be obtained through subpoena of Defendant's medical records. With regard to interrogatories relating to injuries Defendant's parents suffered, the information sought is not relevant because his parents are not named as plaintiffs and/or invade their right to medical privacy. The motion is therefore DENIED.

Motion to Compel re: Form Interrogatories: The Court notes that Plaintiff's meet and confer efforts were insufficient and the separate statement fails to comply with California Rules of Court, rule 3.1345. To the extent the dispute is discernable, the Court finds the answers deficient, evasive or incomplete as to nos. 4.1, 6.4 to 6.7, subpart (d) of 7.1, subparts (c) and (d) of 9.1 and (a), (b) and (c) of 16.2, and the motion is therefore GRANTED as to these interrogatories. All other responses are sufficient and code-compliant. Defendant shall provide further verified responses within 30 days. Given the failure to properly meet and confer, procedural defects with the motion and mixed ruling by the Court, Plaintiff's request for sanctions is DENIED.

Motion to Compel re: RFPs: The motion was timely filed and served, but the meet and confer efforts were insufficient. More importantly, Plaintiff failed to provide any separate statement at all with this motion. (Cal. Rules of Court, rule 3.1345(a),(c).) Furthermore, Defendant attached a copy of his verified responses to RFPs to the opposition that differ from the verified responses attached to the motion. (Compare ROA 280 with ROA 432.) To the extent they are supplemental responses, the motion is moot. The Court is otherwise unable to determine what RFPs are in dispute. The motion is therefore DENIED.

Motion to Compel re: RFAs: To the extent Plaintiff seeks to deem matters admitted, the motion fails because Plaintiff concedes verified responses have been provided. (Code of Civ. Proc. § 2033.280(c)[motion to deem truth of matters specified in RFAs must be granted except if the responding party provides responses in "substantial compliance with Section 2033.220"].) The Court finds the responses are substantially code-compliant. To the extent Plaintiff seeks further responses, the meet and confer efforts were insufficient and Plaintiff failed to submit any separate statement at

		all with this motion. In addition, it appears Plaintiff seeks responses to form interrogatory no. 17.1 for each of Defendant's denials to the RFAs, but there is no evidence Plaintiff ever served form interrogatory no. 17.1. The motion is therefore DENIED. <u>Motion to Proffer Evidence</u>: This motion is a procedurally improper motion for reconsideration of the Court's July 7, 2025 ruling granting Defendant's discovery motions. A motion for reconsideration must be brought within 10 days after service of written notice of entry of the order and must be "based upon new or different facts, circumstances, or law" than those before the court at the time of the original ruling. (Code of Civ. Proc. § 1008, subd. (a).) Here, the motion is untimely and fails to identify any new or different facts, circumstances or law than those before the Court at the time of the order. The motion is therefore DENIED. Counsel for Defendant shall give notice of this ruling.
11	Southwest Voter Registration Education Project v. City of Huntington Beach	O/C
12	Kwok v. Genera Corporation	Before the Court is a Motion to Charge Members' Interests in Limited Liability Companies by defendant/judgment creditor Genera Corporation (Judgment Creditor). The motion is GRANTED, as set forth herein. On 12/2/25, a judgment after jury trial was entered awarding damages in favor of Judgment Creditor and against plaintiffs/judgment debtors Jackson Kwok and Annie Wong (collectively, Judgment Debtors), jointly and severally, in the amount of \$14,271,611.96. (ROA 820) The judgment also reflects an additional \$1,345,000 being awarded separately against Annie Wong. (ROA 820) On 3/10/26, an amended judgment was entered awarding costs and expert fees to Judgment Creditor in the amounts of \$262,540.91 and 360,715.50 respectively. (ROA 1057) Judgment Creditor seeks an order charging the membership interests of plaintiffs/judgment debtors Jackson Kwok and Annie Wong (collectively, Judgment Debtors) in two limited liability companies with payment of the unpaid balance of the judgment as reflected in ROA 1057. The amount of the judgment entered is not disputed. The two entities are: (1) Singgong LLC and (2) Cat & Mouse Investments, LLC (collectively, LLC's). To reach a partnership or LLC interests, the judgment creditor ordinarily must obtain a court order charging those interests with the amount of the judgment. (Code Civ. Proc., §708.320; <i>Evans v. Galardi</i> (1976) 16 Cal.3d 300, 310.) Corporations Code section 17705.03 states "on application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment." (Corp. Code, § 17705.03(a).)

		Corporations Code section 17705.03 also states it is the exclusive remedy by which a judgment creditor seeking to enforce a judgment against a member or transferee may satisfy the judgment from the judgment debtor's transferable interest. (Corp. Code, § 17705.03(f).) Here, Judgment Creditor has provided evidence showing the Judgment Debtors have an ownership interest the LLC's. (See, Graves Decl., ¶ 12, Ex. F, RFA 55 (Kwok); ¶13 Ex. G, RFA 12 (Wong); ¶14, Ex. H, Rog 1 (Kwok); ¶15 Ex. I, Rog 1 (Wong); Ex. J, August 7, 2025 Trial Transcript at 205:20-206:12, 208:25-209:5; Ex. K, September 25, 2024 Deposition of Jackson Kwok at 241:2-5.) The Court finds Judgment Creditor has met its burden as the moving party. Judgment Debtors have submitted no evidence in opposition. For example, neither Kwok nor Wong submitted a declaration denying that they have transferrable interests in the two LLC's. Instead, Judgment Debtors argue their admissions in pre-trial discovery and at trial as to their ownership of the LLCs are insufficient because their ownership in the LLCs may have changed. There is no evidence to support this argument. Judgment Debtors also argue this motion should be denied because it is an improper motion for reconsideration of the Court's 5/11/26 ruling on an earlier motion to charge members' interests. However, the prior motion was denied without prejudice. "Denial of a motion without prejudice impliedly invites the moving party to renew the motion at a later date, when he can correct the deficiency that led to the denial." (<i>Farber v. Bay View Terrace Homeowners Assn.</i> (2006) 141 Cal. App. 4th 1007, 1015.) Accordingly, the motion is GRANTED. As a result a lien is thereby placed on the transferrable interests of Jackson Kwok and Annie Wong in Singgong LLC and Cat & Mouse Investments, LLC. Singgong LLC and Cat & Mouse Investments, LLC are ORDERED to pay over to Genera Corporation any distribution that otherwise would be paid to Jackson Kwok or Annie Wong until such time as the balance of the amended judgment entered 3/10/26 (ROA 1057) is paid in full. Judgment Creditor to submit a proposed order. Judgment Creditor shall give notice.
13	Twining v. Tarvin	Cont. to 8/24.
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